# Verborum - Legal pages and documents

Discussion record, 2026-10-15. Germany / EU / international. Owner: private individual, no company, open source, free app.

**This is not legal advice.** It maps the ground so a lawyer can confirm it cheaply. Items marked *not verified* could not be confirmed in the research done for this document.

## 1. What your situation changes

- **Citizenship does not matter. Where you are established and where your users are does.** The server is in Germany and the owner lives there, so German and EU law apply. Turkish or Azerbaijani citizenship changes nothing under GDPR.
- **'Not a company' does not exempt you.** A public service that stores accounts is not 'purely personal or household' use under GDPR. The owner is the **controller**, personally and without liability protection.
- **Free and non-commercial reduces trader and consumer-law duties**, but only while there are no ads, sales or sponsorship.

## 2. What you need

| Item | Why | Notes |
|---|---|---|
| Privacy policy | GDPR Art. 13 | Reachable in the app, on the web and in both stores. Lists: email, display name, dictionaries and words, ratings, FCM device tokens, Keycloak, Google/Facebook login, Firebase/FCM, mail provider, host, retention, rights. German and English authoritative; other languages marked as convenience translations. |
| Contact / Impressum page | Sec. 5 DDG | Applies to 'geschaeftsmaessig' services, usually paid, but payment is not required. A private hobby project with no ads and no donations is possibly outside it; no source settles open-source apps (not verified). In practice a name and contact address are needed anyway (GDPR identity, DSA contact point, Apple), so publish one. |
| Terms of use + community guidelines | Forum hosts user content | License from users so others can download their dictionaries, minimum age, acceptable use. Also the DSA 'terms' document. Pre-written terms fall under German standard-terms law (Secs. 305 ff. BGB): unfair clauses are void. |
| Notice-and-action path | DSA Art. 16, 17 | Report button or email, a short written review process, a statement of reasons to users when content is removed. Hosting liability protection lasts only until you know of illegal content; then you must act promptly. |
| DSA contact point | DSA Art. 11, 12 | A working email for people and authorities. Baseline duties apply to all hosting services. Extra platform duties may exempt micro and small enterprises; whether an individual counts as an 'enterprise' is not verified. Check the text of Regulation (EU) 2022/2065 with a lawyer. |
| Processor agreements (DPAs) | GDPR Art. 28 | Hosting provider, Google/Firebase, mail provider. Mostly click-through contracts. File them. |
| Records of processing | GDPR Art. 30 | The small-organisation exemption is cumulative and practically never applies to ongoing processing. One internal document. |
| Rights procedures | GDPR Art. 15-20 | Deletion is planned (Phase 5A). Access and export requests need a written way to answer within one month. There is no export endpoint yet. |
| Breach runbook | GDPR Art. 32, 33 | Notify the state data-protection authority within 72 hours. One page: who, what, when. |
| Third-party licenses page; own repo license | Open-source attribution | Required in the apps for MIT/Apache dependencies. Choose and commit the project license. |
| Store declarations | Apple and Google | Already in P5R-18. |

**Not needed, as recalled (not verified):** a data protection officer (threshold: 20 people constantly processing personal data); a data protection impact assessment at this scale; cookie banners (no web tracking - check the web app for third-party scripts or fonts).

## 3. Risks specific to this project

- **Partner and production data.** Giving a contributor in Azerbaijan access to real user data is a transfer to a third country without an adequacy decision. Keep contributors on seed and test data only (scripts/dev-seed). Otherwise written agreements are needed (SCCs plus confidentiality).
- **Children.** The GDPR age of consent in Germany is 16. A language app attracts minors. Set a minimum age in the terms and answer the store age-rating questionnaires to match.
- **Push tokens.** Device tokens are probably 'strictly necessary' for a feature the user asked for. Put this on the lawyer's list for Sec. 25 TDDDG.
- **Personal address in public.** Apple's EU storefront shows an individual developer's address, phone and email unless the app is free, ad-free and the developer declares non-trader status. A Postfach is generally not valid for an Impressum; a commercial address-forwarding service is the usual workaround.
- **Google Play.** New personal accounts must, as recalled, complete a closed test with about 12 testers for 14 days before production (not verified - check the current rule). It affects the release schedule.
- **Unlimited personal liability** for GDPR fines and damage claims (Art. 82). Enforcement against a small free app is unlikely, but a breach with many users is the scenario that hurts.
- **Other countries.** UK GDPR, Turkey's KVKK and similar laws can reach foreign services with local users. Thresholds not checked. A solid GDPR baseline covers most of it. Ask the lawyer for one paragraph on Turkey.

## 4. Triggers that change everything

Any of these makes the owner a trader: **ads, donations or sponsorship, paid features, a subscription.** Then: a full Impressum, trade registration (Gewerbeanmeldung), tax registration with the Finanzamt, and Apple/Google trader declarations with public contact details. Decide before adding a donation button. The next step up is a legal entity (non-profit association e.V. or UG haftungsbeschraenkt); it is worth it only with donations, a team, or real user numbers.

## 5. Professional help

- **A lawyer for IT and data-protection law (Fachanwalt fuer IT-Recht).** One fixed-scope review: privacy policy, terms, DSA process, Turkey and partner questions. For consumers the first consultation is capped by statute, recalled as EUR 190 net (Sec. 34 RVG, not verified). Ask for a flat fee for the review.
- **Template services** (IT-Recht Kanzlei, eRecht24, activeMind and similar): a good skeleton, but none knows Keycloak, FCM or a Forum. Treat output as a draft for the lawyer.
- **The state data-protection authority:** free guidance and answers to general questions; it does not approve documents. It is also the body notified of a breach.
- **Legal insurance and a cyber / IT liability policy:** ask a broker whether a private person running a public app can get one.
- **FSFE and similar open-source legal networks** for licensing and contributor-agreement questions.
- **Native-speaker review** (P5R-19) so translated legal texts do not say something unintended.

## 6. Roadmap result: Phase 5L

Added to docs/agent/roadmap.md as Phase 5L (tasks P5L-01 to P5L-07). P5R-16 to P5R-18 depend on P5L-03.

## 7. Sources


- IT-Recht Kanzlei: https://www.it-recht-kanzlei.de/16-fragen-impressumspflicht-antworten-klarheit.html
- Digital Services Act text: https://dsa.kemitchell.com/contents
- heise on Apple trader status: https://heise.de/-9838371

- 9to5Mac on Apple trader information: https://9to5mac.com/2025/02/18/apple-trader-information-app-store/
- secjur on GDPR Art. 30: https://www.secjur.com/glossar/art-30-dsgvo